CLUK BV
Karreweg 17B, 9870 Zulte, Belgium · VAT BE 1010.948.054 · cluk.live

General Terms and Conditions

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CHAPTER I

General Provisions

Article 1 · Applicability

1. These general terms and conditions apply to all quotations, orders and agreements relating to the supply and/or rental of goods and/or services by CLUK BV ("CLUK") to the Customer. By proceeding with any transaction, the Customer explicitly acknowledges and accepts these terms.
2. These terms prevail over any conflicting terms proposed by the Customer unless expressly agreed otherwise in writing.
3. These terms also apply to agreements executed by third parties on behalf of CLUK.
4. If any provision of these terms is found to be unlawful or unenforceable, the remaining provisions remain valid.

Article 2 · Formation of Agreements

1. Quotations are valid for 30 days unless stated otherwise and are non-binding. Prices exclude VAT unless otherwise noted.
2. Upon acceptance of the quotation by the Customer (either expressly, including online acceptance, or implicitly by execution), a binding agreement is formed.
3. For work not confirmed with a formal order, the invoice serves as confirmation.
4. CLUK may reject any order without providing justification.
5. Repetitive transactions do not create rights beyond the specific agreement, except for these terms which remain applicable.
6. Unit prices indicated in quotations apply. Prices on websites or brochures are indicative only.
7. Communication may be lawfully conducted by email.
8. Agreements are conditional upon a satisfactory credit check. CLUK may require prepayment or guarantees and may suspend its obligations if these are not provided.

Article 3 · Execution

1. CLUK will execute the agreement to the best of its ability.
2. CLUK may assign tasks to third parties.
3. The Customer must provide the necessary information in a timely manner. Delays caused by missing information may result in additional costs.
4. CLUK is not liable for damage resulting from incorrect or incomplete information provided by the Customer.

Article 4 · Delivery

1. Delivery times are indicative. Delays do not justify cancellation or compensation.
2. Goods are delivered EXW (Ex Works) from CLUK's warehouse. Risk transfers upon delivery.
3. Partial deliveries are allowed and may be invoiced separately.
4. The Customer must accept delivery when offered. Refusals may incur storage costs.
5. For work on site, the Customer must ensure proper access, utilities and safety. Additional costs due to non-compliance are charged.
6. For exports outside the EU, the Customer must provide all necessary customs documents at its own expense.

Article 5 · Modifications and Termination

1. Changes affecting cost or quality will be communicated in advance. Only written agreements are binding.
2. CLUK may terminate the agreement immediately if:
   – the Customer breaches its obligations;
   – the Customer's creditworthiness is in doubt;
   – security or prepayment is not provided;
   – bankruptcy, insolvency or similar legal proceedings are initiated.
3. Upon termination, all outstanding claims are immediately due. The Customer must return any rented or supplied goods within 24 hours. CLUK may retrieve the goods if necessary.

Article 6 · Advice and Information

1. CLUK provides advice to the best of its knowledge but accepts no liability for the outcome.
2. Advice does not release the Customer from its responsibility to verify suitability.

Article 7 · Invoicing and Payment

1. Invoices are payable immediately, unless CLUK has agreed other payment terms with the Customer in writing. Such terms are stated on the quotation and the invoice.
2. Payments must be made in full, without deduction or set-off.
3. Default on any partial payment makes all amounts immediately due, together with the late payment interest and penalty below.
4. Disputes about an invoice must be submitted within 7 working days of the invoice date.
5. Unpaid invoices bear, by operation of law and without formal notice, interest of 1% per month from the due date, calculated on the 10th of each month.
6. If a notice of default remains without result, a fixed penalty of 15% of the unpaid amount is due, with a minimum of €125 and a maximum of €3,500. All collection costs are borne by the Customer.
7. If the Customer is a consumer, the interest and penalty are limited to what Book XIX of the Belgian Code of Economic Law allows.
8. Payments are always applied to the oldest outstanding debts first.
9. Invoices below €50 are increased by an administration fee of €5.
10. Credit card payments are charged immediately.

Article 8 · Liability

1. CLUK's liability is limited to the invoice value of the goods or services causing the damage. Indirect or consequential damages are excluded.
2. The Customer indemnifies CLUK against third-party claims.
3. CLUK is not liable for unauthorised alterations or misuse of delivered items.

Article 9 · Force Majeure

1. CLUK is not liable for non-performance caused by circumstances beyond its control.
2. If force majeure lasts more than 14 days, either party may terminate the agreement without liability.
3. Partially executed agreements may be invoiced separately if they have independent value.

Article 10 · Jurisdiction and Applicable Law

1. Belgian law applies. The Vienna Sales Convention (CISG) is excluded. Disputes fall under the exclusive jurisdiction of the courts of Ghent, Belgium.
2. Claims expire 6 months after the date of the service or delivery.
3. These terms exist in English, Dutch, French and Spanish. In case of differences between the versions, the English version prevails.

CHAPTER II

Specific Conditions for Rental and Services

Article 11 · Rental Terms

1. All rented goods remain CLUK's property.
2. The Customer is liable for damage, loss or theft until the goods are returned.
3. The Customer must report theft or damage immediately and cover repair or replacement costs, including lost rental revenue.
4. Insurance covering the rented goods against loss and damage is mandatory.
5. The Customer is liable for third-party damage caused by rented materials.
6. CLUK may inspect or reclaim rented goods if obligations are not met.
7. The Customer is responsible for regulatory compliance at the rental site.
8. Acceptance of goods without remark implies that they are in good condition.
9. Malfunctions must be reported immediately.
10. Unauthorised repairs or modifications are prohibited.
11. Late returns incur full charges and additional costs.
12. Early returns do not entitle the Customer to a refund.
13. CLUK may request a deposit and deduct outstanding balances or repair costs from it.
14. These terms apply equally to services and production projects.

Article 12 · Repairs

1. By submitting an RMA, the Customer accepts these terms.
2. Fees for preparing a repair offer are charged even if the repair is declined.
3. Repair deadlines are indicative.

4. CLUK is not liable for transport damage due to improper packaging.
5. Extra costs may apply for undisclosed defects.
6. CLUK is not responsible for data stored on devices.
7. Accessories that are not listed will not be returned.
8. Materials are insured against fire and theft while in CLUK's possession.
9. Manufacturer warranty terms apply; repairs outside warranty are charged.
10. Acceptance of repaired items confirms approval of their condition.
11. Items left uncollected for 1 month may be sold by CLUK.
12. Repairs carry a 3-month warranty on parts and labour only.

CHAPTER III

Data Protection (GDPR)

1. CLUK BV, Karreweg 17B, 9870 Zulte, is responsible for the personal data of its customers, suppliers, their contact persons and the members of Afrit 6.
2. CLUK processes names, business contact details, company and VAT details, quotations, orders, rentals, bookings, invoices and payments, and the messages exchanged. It does so to prepare quotations, carry out orders, rentals and bookings, invoice, and meet its legal obligations. The legal basis is the agreement, CLUK's legal obligations and its legitimate interest in managing its customer relationships.
3. The data are kept in CLUK's own business application (hosted in the European Union), in Microsoft 365 (email and documents) and in CLUK's accounting software, which its accountant also uses. These providers only process the data on CLUK's instructions. VAT numbers are checked in the European Commission's VIES system.
4. CLUK never sells personal data. Data are only shared with parties needed to carry out the agreement (such as carriers, sub-hire partners and CLUK's accountant) or when the law requires it. Reports to suppliers and manufacturers are anonymised.
5. Data are kept for as long as the business relationship lasts and afterwards for as long as the law requires (accounting documents: 10 years). Emails are kept for a maximum of 1 year unless they concern an ongoing matter.
6. CLUK's application only uses the cookies needed to log in and work securely. CLUK does not use tracking or advertising cookies.
7. Newsletters are only sent to people who asked for them. Anyone can unsubscribe at any time by email; their record is then marked inactive. Targeted mailings by third-party providers are B2B only; those providers bear full responsibility for them.
8. Anyone can ask CLUK to access, correct or delete their data, to restrict or object to its use, or to receive it in a usable format, by writing to info@cluk.live. Complaints can be filed with the Belgian Data Protection Authority (www.dataprotectionauthority.be).
9. CLUK secures its systems (personal staff accounts, encrypted connections, passwords that are stored hashed and never visible to staff) and notifies the authorities of data breaches when the law requires it.

> **These terms are binding upon all transactions with CLUK BV unless explicitly waived in writing.**